

Court file number

(Name of court)

at

Court office address

**Form 28A: Request for
Writ of Seizure and Sale**

Recipient(s)

Full legal name & address for service — street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any).

Lawyer's name & address — street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any).

Payor

Full legal name & address for service — street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any).

Lawyer's name & address — street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any).

TO THE CLERK OF THE COURT:

1. I am ☐ the person who signed the attached statement of money owed.
☐ the lawyer for the person who signed the attached statement of money owed.
☐ other (Specify.) _____

2. The attached statement of money owed contains a claim for \$ _____
 (Insert the sum from paragraph 13 of the statement of money owed.)

3. This claim includes **unpaid support** of \$ _____, an amount that has priority over all other judgment debts of the payor's creditors.

4. I request that a writ of seizure and sale be issued, directed to the sheriff of each of the following areas:
 (list the areas)

(a) to seize and sell the payor's real and personal property within that area;

(b) to realize from that seizure and sale ☐ the sum set out in paragraph 2 above;

☐ the sum of \$ _____ (Set out a sum less than that in paragraph 2 above if you do not want to have all of it enforced by seizure and sale.); and

(c) to pay out the proceeds according to law, including payment of \$ _____ (write "NIL" if no assignment was made) to Legal Aid Ontario in accordance with the attached Assignment of Judgment of Costs in favour of Legal Aid Ontario.

Date of signature

Signature

NOTE: You must file this request and a freshly prepared statement of money owed in Form 26 with the clerk of the court. If you completed paragraph 4(c) of this request with a dollar amount, a copy of the assignment of costs must be attached to this request and to each writ of seizure and sale that you file with a sheriff and a land registrar.